IN THE NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(*Through Hybrid Mode)*

Item No.4
CP (CAA)/4/230/AMR/2024 in
CA (CAA)/02/230/AMR/2024

IN THE MATTER OF:
M/s Haragovind Enterprises Pvt Ltd (Transferor Company) and
M/s Hyderabad Institute of Oncology Pvt Ltd (Transferee Company) and
Shareholders and Creditors

Under Section: 230 of Companies Act, 2013.

Order delivered on 21.03.2025

CORAM:
SHRI UMESH KUMAR SHUKLA, **SHRI KISHORE VEMULAPALLI**
HON'BLE MEMBER (TECHNICAL) **HON'BLE MEMBER (JUDICIAL)**

PRESENT:
In CP
For the Appellant : Mr. M. Parameswara Reddy, Adv.

ORDER

Ms. Kusum Yadav, Assistant Director from the O/o of the RD (SER) present seeks two weeks' time for filing report and. Ms. Krishna Priya, represents on behalf of the Income Tax Department (IT) and reported that they have already filed a report that no demand is outstanding and they do not have any objection for approval of the scheme.

At the time of hearing, it was observed that the Petitioner Company has not filed certificate of Statutory Auditor regarding accounting treatment, list of pending litigations, and other disclosures/affidavits as required under the Companies Act and CAA Rules. The counsel for the Petitioner prayed two weeks' time for filing the requisite affidavits required to be filed in a petition U/s 230 of the Companies Act, 2013 along with the list of pending litigations and with the certificate of the statutory auditor of the company regarding accounting treatment. After filing those compliances by the Petitioner, the RD (SER) is directed to file a report within two weeks. List the matter on 08.05.2025.

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (TECHNICAL)

Sd/-
(KISHORE VEMULAPALLI)
MEMBER (JUDICIAL)